

# Provincial Public Service Commission (Determination of Grounds and Standards) Act, 2019

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1. Short Title and Commencement: (1) This Act may be cited as the "Provincial Public Service Commission (Determination of Basis and Standards) Act, 2075".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chairperson" shall be understood to refer to the Chairperson of the Commission.

(b) "Commission" shall be understood to refer to the Provincial Public Service Commission pursuant to Article 244 of the Constitution.

(c) "Provincial Other Government Service" shall be understood to refer to government services, other than the Provincial Civil Service and the Provincial Police Service, established pursuant to provincial law.

(d) "Provincial Civil Service" shall be understood to refer to the service of the Provincial Government, excluding the Provincial Police Service, Provincial Other Government Service, and services designated by provincial law as not being the Provincial Civil Service.

(e) "Provincial Police Service" shall be understood to refer to the Provincial Police Service established by law.

(f) "Organized Institution" shall be understood to refer to any corporation, company, bank, committee, or other organized institution of a similar nature, such as commissions, corporations, authorities, companies, foundations, boards, centers, councils, established pursuant to provincial law or formed by the Provincial Government, in which the Provincial Government owns or controls fifty percent or more shares or assets.

(g) "Member" shall be understood to refer to a Member of the Commission.

(h) "Local Level" shall be understood to refer to a Rural Municipality or a Municipality.

(i) "Local Government Service" shall be understood to refer to the local service established by law pursuant to subsection (3) of Article 285 of the Constitution.

(j) "Service of Organized Institutions of Local Level" shall be understood to refer to the service of organized institutions of the local level established pursuant to local law at the local level.

(k) "Constitution" shall be understood to refer to the Constitution of Nepal. 3.

Basis for Formation of Commission: (1) The Commission shall consist of a maximum of three Members, including the Chairperson, with at least one woman among them. (2) There shall be a Recommendation Committee, chaired by the Chief Minister of the Province, and comprising the Speaker of the Provincial Assembly and the Leader of the Opposition Party in the Provincial Assembly, to recommend the appointment of the Chairperson and Members. (3) The Recommendation Committee pursuant to subsection (2) shall recommend for appointment to the positions of Chairperson and Member on the basis of the principle of

proportional inclusion. (4) The Provincial Head shall appoint the Chairperson and Members on the basis of the recommendation of the Committee pursuant to subsection (2). (5) A Nepali citizen possessing the following qualifications shall be eligible for appointment to the position of Chairperson or Member:- (a) Having obtained a master's degree from a recognized university, (b) Not being a member of any political party at the time of appointment, (c) Having completed the age of forty-five years in the case of Chairperson and thirty-five years in the case of Member, (d) Having high moral character. (6) Among the Members of the Commission, at least one Member shall be appointed from among persons who have been in any government service for a period of twenty years or more, and the remaining Members shall be appointed from among persons who have gained renown through research, investigation, teaching, or any other significant work in the fields of science, technology, arts, literature, law, public administration, sociology, or other areas of national life. (7) The term of office of the Chairperson and Members shall be six years from the date of appointment. 4.

Basis for Vacancy of Office: (1) Provision shall be made in provincial law for the vacancy of the office of the Chairperson and Member of the Commission on the following basis:- (a) If they submit a written resignation to the Provincial Head, (b) If they have completed the age of sixty-five years, (c) If removed from office pursuant to subsection (5), (d) If the Provincial Head removes them from office upon the recommendation of the Committee referred to in subsection (2) of Section 3, based on the recommendation of a Medical Board formed by the Provincial Government stating they are incapable of performing their duties while in service due to physical or mental illness, (e) Upon their death. (2) If the Chairperson or Member has committed a serious violation of the Constitution and prevailing law, has lack of competence or bad conduct, has not faithfully performed their official duties, or has seriously violated the code of conduct, and is thereby unable to fulfill their official responsibilities, a motion of accusation against the Chairperson or Member may be tabled by one-fourth of the total number of members then serving in the Provincial Assembly. (3) If a motion of accusation is tabled and registered pursuant to subsection (2), an Investigation Committee shall be formed in the Provincial Assembly to investigate whether the bases and reasons mentioned in such motion exist and to submit a report. (4) Provisions relating to the investigation of a motion of accusation against the Chairperson or Member shall be as specified in provincial law. (5) If the Committee constituted pursuant to subsection (3) submits a proposal with a recommendation to remove the Chairperson or Member to the Provincial Assembly, and the proposal is passed by a two-thirds majority of the total number of members then serving in the Provincial Assembly, the Chairperson or Member shall be removed from office. (6) A person removed from office pursuant to subsection (5) shall not be entitled to receive any benefits from such office and shall not be eligible for appointment or nomination to any public office in the future. 5.

Re-appointment: (1) The Chairperson and Members shall not be re-appointed, and they shall not be eligible for appointment to any government service. (2) Notwithstanding anything contained in subsection (1), the Chairperson and Members may be eligible for appointment to the following positions under the following circumstances:- (a) To be appointed as an office-bearer of a constitutional body, (b) For a Member of the Commission to be appointed to the position of Chairperson of the same Commission, (c) To be appointed to any political position or to any position for conducting research, inquiry, or investigation of any subject, or for studying or exploring any subject and submitting opinions, views, or recommendations. (3) If a Member of the Commission is to be appointed to the position of Chairperson of the same Commission, while calculating their term of office, the period during which they served as a Member shall also be added and calculated. 6. Functions, Duties, and Powers of the Commission: While making provisions in provincial law regarding the functions, duties, and powers of the Commission, the following bases and standards must be followed:- (a) The fundamental philosophy and principles of the legal provisions in force concerning the Public Service

Commission, and (b) The practices, methods, and standards adopted by the Public Service Commission regarding works and actions including the type of examination to be conducted for selecting suitable candidates for various services, curriculum design, determination of testing methods, selection of experts, question paper preparation and modification, examination conduct, use of code numbers on answer sheets, answer sheet evaluation, interview conduct, result publication, and recommendation. 7. Conduct of Examinations: (1) While selecting suitable candidates for the appointment of employees to positions in the Provincial Civil Service, Provincial Other Government Service, service of provincial organized institutions, local government service, and service of organized institutions of local level, the Commission may, in addition to written examination, adopt any one or more of the following methods:- (a) Practical examination, (b) Interview, and (c) Other methods as specified by the Commission from time to time. (2) The Commission shall conduct the written examination to be taken for filling positions in the Provincial Police Service. 8. Medium Language of Examination: (1) The medium language of the written examination conducted by the Commission shall be the language of the federal government's official work. (2) In addition to the language mentioned in subsection (1), English or the language of official work determined pursuant to provincial law may also be the medium language of the examination. 9.

Request to the Public Service Commission: The Provincial Government may, upon the recommendation of the Commission, request the Public Service Commission through the Government of Nepal to conduct any examination that the Commission is to conduct. 10. Permanent Appointment and Consultation: (1) Permanent appointment shall not be made to positions in the Provincial Civil Service, Provincial Other Government Service, service of provincial organized institutions, local government service, and service of organized institutions of local level without the consultation of the Commission. (2) The consultation of the Commission must be sought on the following matters:- (a) On the matter of the suitability of candidates when making appointments for a period exceeding six months to positions in the Provincial Civil Service, Provincial Other Government Service, and local government service, (b) On matters of law relating to the service and conditions of employees of positions in the Provincial Civil Service, Provincial Other Government Service, service of provincial organized institutions, local government service, and service of organized institutions of local level, (c) On matters of principles to be adopted while making appointments, promotions, and departmental actions to positions in the Provincial Civil Service, Provincial Other Government Service, service of provincial organized institutions, local government service, and service of organized institutions of local level, (d) On matters of principles to be adopted while making appointments and promotions to positions in the Provincial Police Service, (e) On matters of the suitability of candidates when transferring or promoting from one type of Provincial Civil Service or local government position to another type of Provincial Civil Service or local government service position, or from Provincial Other Government Service to a position in the Provincial Civil Service or local government service, and (f) On matters of departmental punishment to be given to employees of the Provincial Civil Service, Provincial Other Government Service, or local government service. 11. Principles and Standards to be Adopted: (1) To make the selection of candidates for the filling of positions in the Provincial Civil Service, Provincial Police Service, Provincial Other Government Service, service of provincial organized institutions, local government service, and service of organized institutions of local level transparent, impartial, and reliable, the Commission shall adopt the principles and standards adopted by the Public Service Commission pursuant to federal law. (2) The principles and standards pursuant to subsection (1) shall be made public by the Public Service Commission. (3) For conducting works and actions in accordance with the principles and standards pursuant to subsection (1), the Public Service Commission may coordinate and cooperate with the Commission as necessary. (4) Any work or action done by the Commission contrary to subsection (1) shall be deemed to be automatically void. 12.